NEBRASKA
Good Life. Great Mission.

Nebraska Medicaid Work Requirements Frequently Asked Questions

H.R. 1 (the "One Big Beautiful Bill Act") was passed into federal law on July 4, 2025, and made many changes to the Nebraska Medicaid program. This FAQ will discuss the new work requirements added by H.R. 1.

Q: Who has to participate in work requirements?

Unless exempt, non-pregnant and non-disabled adults aged 19-64 who are not enrolled in Medicare and have Medicaid or are applying for Medicaid will need to complete work requirements. Individuals must also be a U.S. citizen or meet immigration rules. This applies to low-income individuals who earn up to 138 percent of the federal poverty level, which is about $21,610 per year for a single person or $44,380 for a family of four.

Some individuals in this group may be exempt from needing to complete work requirements as part of qualifying for Medicaid. In some cases, people may be exempt from work requirements for 'temporary hardships.'

Work requirements only apply to people who are enrolled in Nebraska Medicaid through Medicaid expansion, which began in Nebraska in 2020.

Q: What are work requirements?

For people enrolled in Nebraska Medicaid through Medicaid expansion, they will need to complete at least 80 hours of activities that count toward work requirements during a qualifying month. Work requirements are activities that include working, participating in a work program, or participating in community service for at least 80 hours during at least one qualifying month or attending school or an apprenticeship at least half time. You can combine any of these activities to get to 80 hours during a qualifying month.

Q: When do work requirements start?

Work requirements take effect on May 1, 2026. This includes people enrolled in Nebraska Medicaid through Medicaid expansion on this date or people who newly apply for Nebraska Medicaid on or after this date.

Q: What counts as 'working?'

Any paid job or combination of jobs where you work 80 hours during a qualifying month count. You can also meet this requirement in a qualifying month by earning the 'minimum threshold' set in federal law, or if your average monthly income from working over the last six months from seasonal work met this threshold, regardless of the number of hours worked.

Q: How much do I need to earn at work to meet the 'minimum threshold?'

This is the equivalent of 80 hours worked at the current federal minimum wage. As of December 2025, this is about $580 per month.

Q: What counts as seasonal work?

This is work performed typically during certain times of year and not year-round. Examples may include some agricultural work, or retail work limited to the holiday season.

Q: What counts as school or an apprenticeship?

Attending any accredited school at least half-time will meet the work requirement. Participating in a registered apprenticeship for the required hours during a qualifying month also counts.

Q: How can I tell if my school is accredited, and how much time is 'half-time?'

Most schools that are accredited make their accreditation information available for the public to see. If you cannot find it, you can check with another source like the U.S. Department of Education.

As long as you meet your school's definition of half-time enrollment, it will count for work requirements.

Q: What counts as a 'work program?'

Participating in any job-skills program for 80 hours during a qualifying month count. These can be programs ran by governments or nonprofits that help you build useful job skills and help you find job opportunities.

If you need help finding a job, the Nebraska Department of Labor has resources available online at https://neworks.nebraska.gov/vosnet/Default.aspx.

Q: Does looking for a job outside of a work program count as a work requirement?

Job seeking on your own, outside of a work program, does not count.

Q: What counts as community service?

Volunteering in the community for 80 hours during a qualifying month counts.

Q: Who is exempt from work requirements?

The following people do not need to complete work requirements as a part of qualifying for Medicaid:

- People under age 26 who aged out of foster care
- People who are members of recognized Native American tribes
- Parents, caretakers or guardians of children up to age 13 or of an individual with disabilities
- Veterans with a total disability rating
- People who are medically frail or have special medical needs
- People compliant with work requirements under the SNAP or TANF programs
- People who are participating in a drug addiction or alcoholic treatment program
- People who are incarcerated or have been incarcerated within the last 90 days
- Women who are pregnant or up to 12 months after the end of pregnancy

Other mandatory exceptions may apply.

In some cases, Nebraska Medicaid may need to ask for information from people to see if someone is exempted from work requirements.

Q: What does medically frail mean?

Someone could be considered medically frail if they have one or more of the following conditions:

- Blindness or disability
- Substance use disorder
- Disabling mental disorder
- Or other significant physical, intellectual or developmental disabilities

Q: What is a 'temporary hardship?'

You can be exempt from work requirements if:

- You were hospitalized or lived in a nursing home or similar facility.
- You or a dependent had to travel outside your community to receive care to treat a serious health condition.
- You lived in a county currently under a federal emergency declaration or in a county with a high unemployment rate (8 percent or 1.5 times the national unemployment rate).

Q: If a temporary hardship applies to me, how will Nebraska Medicaid know?

If any of the temporary hardships applied to you, you may need to submit a request to be exempted from the work requirements. You can send a request to DHHS in person, online, by phone, or through the mail.

Q: How will I know if work requirements apply to me?

Nebraska Medicaid will send a notice by mail to everyone enrolled in Nebraska Medicaid through Medicaid expansion by January 1, 2026. Nebraska Medicaid will also send an email or text for those people who have told Nebraska Medicaid they prefer electronic notices.

Nebraska Medicaid will also share more information on our website: https://dhhs.ne.gov/WorkRequirements.

Q: How will Nebraska Medicaid check if someone has met work requirements, or if someone is exempt from them?

Nebraska Medicaid will try to use information it already has available to see if someone has completed the work requirements or qualify for an exemption. If Nebraska Medicaid does not have enough information, we will request more information. People can provide this information in person, online, by phone, or through the mail. We will send a form describing the information we need and how to send it to us. This form will serve as a legal document that someone meets work requirements.

If someone already has Medicaid, we will check to make sure they have completed work requirements or were exempt during at least one qualifying month.

If someone is applying for coverage, we will check if they completed work requirements or were exempt when they apply.

Q: What happens if Nebraska Medicaid determines someone is not completing work requirements?

If someone is required to complete work requirements and does not complete them in a qualifying month and are not exempt, they will lose their Medicaid coverage.

If someone responds to all of Nebraska Medicaid's requests for information, and Nebraska Medicaid determines that someone does not complete work requirements, the individual must apply for Medicaid again as a new applicant. During this time, this individual will not be eligible for advanced premium tax credits on the federal marketplace.

Q: Do people need to let Nebraska Medicaid know of changes that affect their eligibility?

Yes. All Nebraska Medicaid beneficiaries are responsible for letting Medicaid know of any changes in their circumstances that may affect their Medicaid eligibility. This includes job changes (which could affect income), or other changes like who is living in the household (marriage, divorce, pregnancy, adoption), or if they move to a new address.

If someone needs to report any changes in their circumstances to Nebraska Medicaid, they can contact us in the following ways:

- **Online:** at https://iserve.nebraska.gov/
- **By mail:** P.O. Box 2992
  Omaha, NE 68103-2992
- **By phone:**
  - Phone Number: (855) 632-7633 (select option 3)
  - Lincoln Phone Number: (402) 473-7000 (select option 3)
  - Omaha Phone Number: (402) 595-1178 (select option 3)
  - TTY Number: (402) 471-7256
  - Fax: (402) 742-2351
- **In person:** at a local DHHS office
  https://dhhs.ne.gov/Pages/Public-Assistance-Offices.aspx